

#	Case Name	Tentative
1	All American Diesel & Fleet Services, Inc. vs. Stanley 2026-01572743	Order to Show Cause re: Preliminary Injunction Plaintiff All American Diesel & Fleet Services, Inc.’s request for a preliminary injunction is GRANTED. The court previously granted Plaintiff’s ex parte application for a temporary restraining order and set an OSC re: issuance of a preliminary injunction. “A trial court may grant a preliminary injunction upon a showing that (1) the party seeking the injunction is likely to prevail on the merits at trial, <i>and</i> (2) the ‘interim harm’ to that party if an injunction is denied is greater than ‘the [interim] harm the [opposing party] is likely to suffer if the ... injunction is issued.’ [Citations.] These two showings operate on a sliding scale: ‘[T]he more likely it is that [the party seeking the injunction] will ultimately prevail, the less severe must be the harm that they allege will occur if the injunction does not issue.’ [Citation.]” (<i>Integrated Dynamic Solutions, Inc. v. VitaVet Labs, Inc.</i> (2016) 6 Cal.App.5th 1178, 1183.) The burden is on the party seeking the preliminary injunction to produce evidence demonstrating his entitlement to the injunction. (<i>O’Connell v. Superior Court</i> (2006) 141 Cal.App.4th 1452, 1481.) A preliminary injunction may be granted upon a verified complaint, as well as other evidence. (See Code Civ. Proc., § 527, subd. (a).) On a request for preliminary injunction, the trial court is the judge of the credibility of the affidavits filed in support of the application for preliminary injunction, and it is in the trial court’s province to resolve conflicts in the evidence. (<i>Shoemaker v. County of Los Angeles</i> (1995) 37 Cal.App.4th 618, 625.) The court’s factual determinations are reviewed for substantial evidence. (<i>Ibid.</i>) In assessing whether to grant a preliminary injunction, the court is to apply a two-prong test where the court assess (1) the balance of harms that would result from the issuance/non-issuance of the preliminary injunction and (2) the probable outcome at trial. These two factors are weighed together. (<i>Butt v. State of California</i> (1992) 4 Cal.4th 668, 678.) In other words, if a strong showing is made on one factor, then a relatively lower burden is required as to the other factor to justify issuance of a preliminary injunction. If a preliminary injunction is granted, the court must require an undertaking. (Code Civ. Proc. § 529.) The bond is to cover any damages to the defendant caused by issuance of the injunction, if it is finally determined that plaintiff was not entitled to the injunction. CCP § 529; see <i>Top Cat Productions, Inc. v. Michael’s</i>

		<i>Los Feliz</i> (2002) 102 Cal.App.4th 474, 478. Plaintiff has established a sufficient probability of prevailing on its Seventh Cause of Action for Violations of Bus. & Prof. Code §17200. Plaintiff has established that Defendants created a parallel business entity to Plaintiff, have interfered with Plaintiff's Google Workspace management, have diverted receipts owed to Plaintiff from Customers to Defendant's own accounts, and that Defendants removed property from Plaintiff's premises and are withholding that property. (See ROA 37 ["Gola decl."] at ¶¶ 10-12 [formation of parallel LLC]; 13-14 [Google Workspace changes]; 17-20 [diversion of customer receipts; 21-26 [taking possession of company property].) Plaintiff has established the irreparable harm that would result if no injunction were in place. (See Gola Decl. ¶¶ 35-40.) Defendant has not made an intelligible factual showing that establishes either (1) a lack of probable validity of Plaintiff's claims; or (2) that Defendant would suffer greater interim harm by the imposition of the injunction that Plaintiff would if no injunction were ordered. Within 5 days Plaintiff shall lodge a proposed preliminary injunction that maintains the same provisions as the temporary restraining order entered on July 1, 2026, except the amount of the required undertaking shall be changed from \$10,000 to \$50,000. Plaintiff shall post the new undertaking and serve a copy of the signed Order granting the preliminary injunction promptly after the Court signs the order. Plaintiff shall provide notice.
2	Bavarian vs. Aston Marton Lagonda of North America, Inc. 2022-01241715	Motion for Judgment on the Pleadings Defendant Aston Marton Lagonda of North America, Inc.'s motion for judgment on the pleadings is DENIED. (Code Civ. Proc., § 438 [authorizing motion]; <i>Hightower v. Farmers Ins. Exchange</i> (1995) 38 Cal.App.4th 853, 858 ["Because a motion for judgment on the pleadings is the functional equivalent of a general demurrer, the same rules apply"].) Moving party's request for judicial notice is DENIED. (<i>Stevens v. Superior Court</i> (1999) 75 Cal.App.4th 594, 607-608 [materials prepared by private parties and merely on file with state agencies are not ordinarily subject to judicial notice pursuant to Evid. Code,